

7	20CV374177	Ling Wang vs James McClenahan et al	Plaintiff Ling Wang's motion to deem requests for admission admitted is GRANTED. A notice of motion with this hearing date was served on Defendant by electronic mail on January 27, 2025. Defendant failed to file an opposition. "[T]he failure to file an opposition creates an inference that the motion [] is meritorious." (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant this motion. Plaintiff served requests for admission on Defendant on July 17, 2024. To date, Defendant served no responses. A party served with Requests for Admission must serve a response within 30 days. (Code of Civ. Pro. §2033.250.) When a party fails to respond—even in the face of a motion to have the matters in the requests for admission deemed admitted—as Defendant has done here, the Court must order the requests for admission deemed admitted. (Code of Civ. Pro. §2033.280(c); <i>St. Mary v. Superior Court</i> (2014) 223 Cal.App.4th 762, 775-776.) Such a "deemed admitted" order establishes that the nonresponding party has responded to the requests for admission by admitting the truth of the matters contained in the requests. (<i>Id.</i>) Accordingly, Plaintiff's motion is granted, and the matters set forth in Plaintiff's requests for admission are deemed admitted. Plaintiff also seeks \$3,787.50 in sanctions. While this motion was simple and unopposed, Defendant was previously sanctioned for failing to respond to discovery. The Court thus finds \$3,787.50 in sanctions appropriate, and that portion of Plaintiff's motion is also GRANTED. Court will prepare formal order.
8	21CV390372	ARIDIS PHARMACEUTICALS, INC. vs SAN JOSE BIOCUBE II, LLC	The parties are ordered to appear regarding Sheppard Mullin Richter & Hampton's motion to withdraw as counsel. The Court wants to confirm that Aridis Pharmaceuticals, Inc. ("Aridis") was given notice of the Court's order granting counsels' motion to advance the hearing date on their motion to withdraw. Further, because Aridis is a corporation, it can only appear in this action through counsel. (See <i>Clean Air Transp. Sys. v. San Mateo County Transit Dist.</i> (1988) 198 Cal. App. 3d 576, 578 ("[A] corporation is a distinct legal entity, separate from its shareholders and officers. The rights and liabilities of corporations are distinct from the persons composing it. Thus, a corporation cannot appear in court except through an agent."); <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal. App. 3d 501, 503 ("The rule is clear in this state that, with the sole exception of small claims court, a corporation cannot act in propria persona in a California state court."); <i>Merco Constr. Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal. 3d 724, 727 ("the Legislature cannot constitutionally vest in a person not licensed to practice law the right to appear in a court of record in behalf of another person, including a corporate entity.") Accordingly, if this motion is granted, Aridis will be ordered to appear on April 10, 2025 at 10:00 a.m. in Department 6, and show cause why its answer should not be stricken and default entered against it for failure to obtain counsel.
9	22CV400431	Cynthia Aguirre vs SONESTA INTERNATIONAL HOTELS CORPORATION et al	Pursuant to the Court's February 3, 2025 order, the parties are ordered to appear, and Plaintiff is ordered to be prepared to show cause why this case should not be dismissed for failure to prosecute. If Plaintiff fails to appear, the case will be dismissed without prejudice.

10	23CV422621	MICHAEL HERTZ vs MARK A. OLIVEREZ et al	Before the Court is the parties' joint request to appoint an appraiser. The Court has studied the parties' proposed appraisers and appoints Stephen W. Gettel, MAI, of Gettel & Associates as the appraiser to appraise the real property that is the subject of the partition action in this case. The Court will prepare a formal order.
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